

TENTATIVE RULING

Case: **Winters Farms LLC v. Heer Pistachio Farms, Inc.**
 Case No. CV2026-2181

Hearing Date: **September 8, 2026** **Department Thirteen** **9:00 a.m.**

Petitioner Winter Farms LLC’s petition for order releasing property from claim of mechanics lien is **DENIED AS MOOT**. (Civ. Code, § 8480, subd. (a).) The Court finds that respondent Heer Pistachio Farms, Inc.’s recording of the release of claim of lien on August 17, 2026, renders the petition moot. (Civ. Code, § 8480, subd. (a); *Center for Local Government Accountability v. City of San Diego* (2016) 247 Cal.App.4th 1146, 1157; Heer decl., ¶ 7, Exhibit 3.)

The Court **GRANTS** petitioner’s request for an order awarding reasonable attorney’s fees incurred in demanding this release and bringing this petition, in an amount to be determined by motion after entry of judgment. (Civ. Code, § 8488, subd. (c).) First, petitioner achieved its goal because it obtained a release of the lien outside of the ten-day period provided under Civil Code section 8482. (Heer decl., ¶ 7, Exhibit 3.) Second, respondent voluntarily released the lien, which suggests that there is no genuine dispute as to the lien’s validity. Third, respondent’s opposition does not indicate it released the lien for a reason other than petitioner’s petition. (See generally Heer decl.) Therefore, the Court finds that petitioner is the prevailing party. (Civ. Code, § 8488, subd. (c).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.